From: **Bill Lu** bill_y_lu@yahoo.com
Subject: 27-CV-26-11606 (Your File No. 5490): Meet and confer on Defendant's October 21, 2026 responses to Requests for Production Nos. 1, 15, 16, 17 and 20
Date: October 29, 2026 at 2:12 PM
To: Mary Baskfield mbaskfield@kennedylf.com, Kevin Kennedy kkennedy@kennedylf.com
Cc: Jie Hu jie_h_hu@yahoo.com, Julie Parks jparks@kennedylf.com, Asli Abdi aabdi@kennedylf.com

Dear Ms. Baskfield and Mr. Kennedy:

We write under Minn. R. Civ. P. 37.01(b), Minn. Gen. R. Prac. 115.10 and ¶ 4 of the September 8, 2026 Scheduling Order. We want to resolve two issues with Defendant's October 21, 2026 Response to Plaintiffs' First Set of Requests for Production before we raise them with the Court.

This email does not serve new discovery requests. Each item below is called for by Requests for Production served on September 15, 2026, to which Defendant responded on October 21, 2026.

1. Claim file and claim notes (RFP Nos. 1 and 20)

- RFP No. 1 asks for the entire claim file for Claim No. 7007986837-1-1, "including every document, photograph, audio file, video file, item of ESI, system or case note, audit-log entry, billing record, and internal communication of any kind."
- RFP No. 20 asks for "[t]he complete claims-portal record for The Claim, including all messages, document uploads, and status entries."
- Defendant's response to RFP No. 1 states: "Due to technical difficulties, Defendant will supplement its document production with the redacted Full Claim file/Claim notes as soon as possible."
- Defendant's September 25, 2026 Initial Disclosures likewise state that "FIE has in its possession the remainder of the claim file not produced herewith."

No claim notes, activity log or portal record have been produced. We ask that Defendant:

(a) produce the complete claim file, including all claim/system notes, the activity log and the claims-portal record, by **November 6, 2026**; (b) provide, at the same time, a description of anything redacted or withheld as privileged, as Minn. R. Civ. P. 26.02(f)(1) requires; and (c) state for RFP Nos. 1 and 20 whether any responsive materials are being withheld on the basis of an objection, as Minn. R. Civ. P. 34.02(c) requires.

2. Appraisal materials (RFP Nos. 15, 16 and 17, and communications with Concise Resolution Services under RFP No. 1)

- **RFP No. 15** asks for all correspondence with the appraisal panel (Greg Tomes, John Foster and umpire Wade Roos), "including engagement letters, scoping communications, methodology communications, and post-award correspondence."
- **RFP No. 16** asks for all documents in Defendant's possession, custody or control from umpire Wade Roos's working file. It also asks Defendant, if it has no report, estimate, worksheet, calculation or methodology document from Mr. Roos supporting the $12,800 / $6,400 figures, to "state that expressly in Your response." Defendant's response does not make that statement.
- **RFP No. 17** asks for Mr. Tomes's appraiser file, including his notes, photographs, measurements and drafts; his report; his "appraiser's position" and "appraiser's response" and every draft of each; communications between Defendant and Mr. Tomes;

his engagement; and documents reflecting his reasons for not signing the award.
- **RFP No. 1** (the entire claim file, including internal and external communications) covers Defendant's communications with **Concise Resolution Services, LLC**. Defendant's August 13, 2025 appraisal letter was addressed to Concise together with Plaintiffs' appraiser (FIE 0308). Concise's September 15, 2025 email to Defendant's claim mailbox states: "This appraisal is complete and the closing docs are attached" (FIE 1633). The attachments were not produced.

Defendant's own production shows that responsive documents exist and were not produced. The appraiser's correction email that Defendant forwarded to Plaintiffs as "the appraiser's response" states, "I mistakenly stated the dining room in my report" (FIE 1639; FIE 1645). Neither that report nor the Concise attachments has been produced.

We ask that Defendant, by **November 6, 2026**:

(a) produce all documents responsive to RFP Nos. 15, 16 and 17, including the report referenced at FIE 1639; (b) produce all communications between Defendant and Concise Resolution Services, LLC concerning the Claim or the appraisal, including the attachments to Concise's September 15, 2025 email (FIE 1633); (c) for RFP No. 16, state expressly whether Defendant has any report, estimate, worksheet, calculation or methodology document from Mr. Roos; and (d) state for each of these requests whether any responsive materials are being withheld on the basis of an objection (Rule 34.02(c)), and describe anything withheld as privileged (Rule 26.02(f)(1)).

Defendant's relevance objection is that the claim "was resolved via a binding appraisal award." What the panel was asked to decide and what it actually evaluated is the central disputed question in this case, under Defendant's Second Affirmative Defense and Count III of the Complaint. Defendant's Initial Disclosures also name the appraisal award and the three panel members as documents and witnesses Defendant relies on. These documents are therefore "relevant to any party's claim or defense" (Minn. R. Civ. P. 26.02(b)). They are specific, identified documents, so producing them is not burdensome.

3. Other responses

We are limiting this email to the two issues above. Plaintiffs also dispute Defendant's objections and incomplete responses to Requests for Production Nos. 2–14, 18, 19 and 21–53; to Interrogatories Nos. 1–12; and to the pending Requests for Admission identified in our September 27, 2026 letter. Plaintiffs reserve the right to raise each of those separately.

If we cannot resolve these issues, we will request a conference call with the Court under ¶ 4 of the Scheduling Order.

Regards,

Yibiao Lu and Jie Hu
Plaintiffs pro se